

Calaveras Superior Court
Friday, May 7, 2021
Civil Law & Motion Calendar
Tentative Rulings
Hon. David M. Sanders
Courtroom #2

9:00 AM 20CV44713 Plaintiff's Motion to Expunge Lis Pendens 05/19/2020 05/19/2021 Case Management Conference

Ptff/Pet: Guaranty Holdings of California Inc.

Atty: Arata Swingle Van Egmond & Heitlinger

Def/Res: Cattaneo, Bernadette Francine; Dufresne, Christopher; Estate of Sylvia Brown;
 Giambi, Jason; Holmes, Dan; Resort at Lake Tulloch Llc; Robinson, Craig David

Atty: Parr, Shawn Robert; Law Offices of Vittoria
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Tentative Ruling: The complaint was filed on May 19, 2020 and defendant Dufresne answered on June 23, 2020. Defendant Estate of Sylvia Brown has not filed an answer. This motion was filed on April 7, 2021.

Plaintiff has not complied with Local Rule 3.3.7 enacted January 1, 2018, by failing to include the mandatory language in the notice of motion regarding the Court's tentative ruling system. Pursuant to said local rule, lack of compliance provides a specific ground to deny any such procedurally-deficient motion. Based solely upon plaintiff's failure to comply with Local Rule 3.3.7, the motion is DENIED without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.